

ETHER TERMINAL LLC

Sovereign Cryptographic Intelligence & Autonomous Operating Systems

NORTH CAROLINA SOS FILE NO. 3300608
HEADQUARTERS: GREENVILLE, NC 27834
TEL: (888) 861-9020 | WEB: ETHER-TERMINAL.COM
SECURITY CLASSIFICATION: CONFIDENTIAL / EVALUATION

ETHER TERMINAL LLC

SOVEREIGN PILOT EVALUATION AGREEMENT & TECHNICAL SLA CHARTER

This **Sovereign Pilot Evaluation Agreement** (the "Agreement") is entered into as of the date of signature below (the "Effective Date"), by and between:

- **PROVIDER: Ether Terminal LLC**, a North Carolina limited liability company (SOS ID: 3300608, Greenville, NC) ("Ether Terminal" or "Provider"), and
- **PARTICIPANT:** _____ ("Participant" or "Company").

1. PURPOSE & 30-DAY PILOT SCOPE

Ether Terminal grants Participant a temporary, non-exclusive, non-transferable, 30-day evaluation license to deploy and test the **Sovereign Ether OS** air-gapped claims processing and forensics platform (the "Software") in Participant's testing environment for internal evaluation purposes only.

- **Evaluation Period:** Thirty (30) calendar days commencing upon digital delivery or activation of the evaluation software.
- **Architecture Mode:** Zero-Trust Local Enclave. The Software executes 100% on-device with zero cloud egress, zero third-party telemetry, and zero corporate firewall exceptions required. Zero new hardware required—executes locally on Participant's existing enterprise workstations and computing infrastructure.

2. FINANCIAL TERMS & 100% ROLLOVER CREDIT

1. **Evaluation Deposit:** Participant agrees to pay an Evaluation Deposit of:
2. [] **\$9,500.00 USD** — Sovereign Node Pilot Pass: Instant Sovereign Evaluation Runtime for single workstation / field adjuster with full actuarial valuation & forensics modules. (Zero New Hardware Required).
3. [] **\$22,500.00 USD** — Sovereign Enclave Enterprise Pilot Pass: Multi-seat evaluation cluster (up to 10 nodes) with custom carrier rules, TORQ Sovereign Telematics ingestion layer, and white-glove engineering support.
4. [] **\$35,000.00 USD** — Health & Disability ZK Enclave Shadow Pilot: 30-Day Zero-IT parallel audit of up to 25 historical group disability claims, Groth16 BN254 ZK proving circuits, BIPA 740 ILCS 14/15 Ephemeral Enclave compliance, and SSAP 54 / NAIC Schedule H statutory reserve release quantification.
5. **100% Production Rollover Credit:** Upon Participant executing an annual production software license within sixty (60) days of the Effective Date, **one hundred percent (100%) of the Evaluation Deposit** shall be credited directly against the Year 1 annual license fee invoice. The pilot carries a **\$0.00 net cost** upon annual deployment.

3. TECHNICAL SERVICE LEVEL AGREEMENT (SLA) & PERFORMANCE GUARANTEE

Provider warrants and guarantees that during the Evaluation Period, the Software shall meet the following three (3) objective, verifiable technical benchmarks:

SLA Benchmark	Objective Standard	Verification Method
SLA 1: Sub-5s Local Processing	First Notice of Loss (FNOL) damage valuation and actuarial repair scoping completed in < 5.0 seconds per claim.	System timestamp audit on Participant evaluation machine.
SLA 2: Zero Cloud Data Egress	0.00 KB of claim, vehicle, or biometric data transmitted to public internet or third-party servers.	Participant network packet capture (Wireshark / firewall monitor).
SLA 3: CIECA BMS Compliance	Automated repair estimates output certified CIECA BMS (v2024.1) JSON/XML or heavy vehicle SAE J1939 binary telemetry records.	Exported file schema validation in Mitchell, Guidewire, or CCC.

4. SLA REMEDY & 100% REFUND COVENANT

- 1. Test Ingestion Window:** Participant agrees to provide sample historical claim records, photos, or telematics logs for testing during the Evaluation Period.
- 2. Cure Period:** In the event the Software fails to satisfy any of the three (3) objective SLAs in Section 3, Participant shall notify Provider with error logs or packet capture. Provider shall have **five (5) business days** to deliver a software patch or resolution.
- 3. 100% Refund Covenant:** If the Software still fails to satisfy the objective SLA following the cure period, Participant shall receive an immediate **full, 100% refund of the Evaluation Deposit** upon verified cryptographic revocation and de-provisioning of the evaluation software license.
- 4. Active Participation Condition:** The SLA refund applies strictly to verified technical non-performance. No refund shall be issued for buyer remorse, internal corporate reorganization, or failure by Participant to test evaluation data during the Evaluation Period.

5. BIOMETRIC PRIVACY & LOCAL RAM ZEROIZATION ADDENDUM

(Compliance with Illinois BIPA 740 ILCS 14/, California CCPA/CPRA, and GLBA / HIPAA Safeguards)

- 1. Volatile RAM-Only Execution:** All biometric processing—including facial liveness verification, ocular topology, and voice acoustic stress analysis—executes strictly within volatile local system memory (RAM). Provider maintains zero capability, infrastructure, or network channels to access, collect, or store biometric identifiers of Participant personnel or claimants.
- 2. Zero Persistent Biometric Identifier Storage:** At no point is any raw facial scan geometry, biometric voiceprint template, or neural acoustic stress vector written, saved, or serialized to persistent storage. All biometric identifier extraction operates exclusively in volatile RAM and is immediately zeroized upon session completion.
- 3. FIPS 140-3 Level 1 Zeroization & 60-Second Ephemeral Enclave:** In strict compliance with Illinois BIPA 740 ILCS 14/15 and HIPAA 45 CFR § 164.514(b) De-Identification Standards, all biometric arrays, ballistocardiogram liveness vectors, and intermediate witness matrices are automatically overwritten with cryptographically random zeros (`0x00`) via secure `memset_s` within sixty (60) seconds of proof computation, or immediately upon session close. Carrier servers receive exclusively 256-bit zero-knowledge cryptographic digests with zero custody of raw biometric or health data.

6. INSTITUTIONAL ENTERPRISE COVENANTS & SINGLE-THROAT-TO-CHOKE SHIELDS

1. **Participant Data Sovereignty & Zero AI Training:** Participant retains sole, exclusive, and unencumbered ownership of all claim records, telemetry logs, acoustic feeds, and files processed during evaluation. Provider acquires zero intellectual property or license rights in Participant data. **Zero Participant data shall ever be used, aggregated, or processed to train, refine, or calibrate public or multi-tenant machine learning models.**
2. **Adjuster Decision-Support Disclaimer:** Ethan AI acoustic, optical, and sensor forensics indicators are diagnostic decision-support heuristics designed to assist credentialed claims personnel. Final claims adjudication, settlement valuation, fraud determinations, and coverage decisions remain the exclusive professional responsibility of Participant.
3. **Mutual Confidentiality (NDA):** Each party agrees to protect the other's Confidential Information with at least reasonable care. Provider proprietary algorithms, compiled binaries, and cryptographic protocols, and Participant claims data and operational practices, constitute protected Confidential Information.
4. **24-Hour Rapid Technical Support SLA:** Provider provides priority direct-dial technical engineering support during the Evaluation Period with a guaranteed <24-hour resolution SLA for any reported software anomalies.
5. **TORQ Sovereign Edge Subsystem & Ingestion Layer:** Ingestion layers evaluate telematics locally via benchmark log replay, encrypted OBD-II/CAN streams, or synthetic events with zero persistent storage of raw sensor streams and zero third-party cloud data egress. Policyholder mobile edge SDK deployment is scheduled for Phase 2 enterprise rollout.
6. **Corporate Treasury Disbursement Window:** The assigned Wire Memo Code, reservation slot, and concessions are held in binding reservation for ten (10) business days from dossier issuance to accommodate Participant's standard Accounts Payable verification and disbursement cycle.
7. **End-of-Pilot Data Sanitization:** In the event Participant does not convert to an annual production agreement at the conclusion of the 30-day evaluation, Participant shall execute the on-device cryptographic zeroization utility in compliance with **NIST SP 800-88 Guidelines for Media Sanitization** on evaluation machines.
8. **Vendor Insurance & Limitation of Liability:** Provider maintains Commercial General Liability (\$5M / \$10M aggregate), Technology Errors & Omissions, and Cyber Risk insurance. Standard ACORD 25 Certificates of Insurance (COI) are provided upon AP request. Except for gross negligence or willful misconduct, Provider's aggregate liability under this Agreement is limited to total fees remitted hereunder.
9. **Governing Law & Commercial Arbitration:** This Agreement shall be governed by and construed in accordance with the laws of the State of North Carolina, without regard to conflict of law principles. Any dispute arising hereunder shall be resolved through confidential binding commercial arbitration administered by the American Arbitration Association (AAA) in accordance with its Commercial Arbitration Rules.

7. PROPRIETARY PROTECTION, REVERSE-ENGINEERING BAN & COMPETITIVE USE COVENANT

1. **Strict Reverse-Engineering, Decompilation & Disassembly Prohibition:** Participant agrees and covenants that it shall not, directly or indirectly through any employee, affiliate, agent, consultant, contractor, or third party: (i) decompile, disassemble, reverse engineer, decrypt, extract, inspect, or otherwise attempt to derive or reconstruct the source code, underlying algorithms, protocol structure, mathematical formulations, or internal mechanics of the Software, its compiled binaries (`.dylib` , `.so` , `.dll` , `.exe` , `.app`), its WebAssembly runtime engines, cryptographic lease tokens, or local models; (ii) modify, adapt, translate, enhance, create derivative works of, or build upon the Software or any part thereof; or (iii) bypass, circumvent, tamper with, defeat, analyze, or disable any security controls, licensing mechanisms, cryptographic lease enforcement counters (`LeaseShieldEngine`), memory zeroization routines, or integrity verifications embedded within the Software.

2. **Competitive Benchmarking, Copycats & Derivative Work Ban:** Participant covenants and agrees that the Software, documentation, performance benchmarks, and architecture are provided under strict confidential evaluation. Participant shall not, directly or indirectly: (i) use, evaluate, test, or access the Software or any proprietary output or methodology to develop, design, train, build, benchmark, market, or sell a competing product, software, service, or forensic platform; (ii) conduct, publish, disclose, or disseminate comparative benchmark tests, speed audits, architectural analyses, or competitive intelligence regarding the Software to any third party without Provider's prior written consent; or (iii) copy, clone, emulate, replicate, or simulate the user interface, algorithmic workflow, actuarial damage estimation heuristics, or local enclaved execution architecture of the Software.
3. **AI & Neural Model Distillation Ban:** Participant is expressly prohibited from capturing, logging, recording, or using inputs, intermediate representations, acoustic forensic outputs, optical damage vectors, or settlement directives generated by the Software to train, fine-tune, distill, evaluate, or bootstrap any machine learning model, neural network, heuristic engine, or artificial intelligence system, whether proprietary or open-source.
4. **Trade Secret & Architecture Confidentiality:** All source code, object code, system architectures, mathematical models, cryptographic validation routines, zero-knowledge circuit parameters, and forensic heuristics embodied in the Software constitute valuable trade secrets and exclusive intellectual property of Ether Terminal LLC protected under the Defend Trade Secrets Act (18 U.S.C. § 1836), the Uniform Trade Secrets Act, and international treaty.
5. **Immediate Injunctive Relief & Liquidated Damages:** Participant acknowledges and agrees that any violation or threatened breach of this Section 7 will cause immediate, irreparable, and incalculable harm to Provider for which monetary damages alone would be inadequate. Consequently, Provider shall be entitled to seek and obtain immediate injunctive relief, specific performance, and temporary restraining orders from any court of competent jurisdiction without the requirement of posting a bond or proving actual financial loss, in addition to all other legal remedies, attorney's fees, and statutory damages available at law or in equity.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date.

ETHER TERMINAL LLC (PROVIDER)

Signature: _____

Name: Authorized Corporate Officer

Title: Managing Director & Executive Officer

Date: _____

Contact: contact@ether-terminal.com

Phone: (888) 861-9020

Web: <https://ether-terminal.com>

Entity: Ether Terminal LLC (North Carolina — SOS ID: 3300608)

Address: Corporate Headquarters, Greenville, NC (NC SOS ID: 3300608)

PARTICIPANT / COMPANY

Signature: _____

Authorized Name: _____

Title: _____

Company Name: _____

Date: _____

Corporate Email: _____

Billing / AP Contact: _____

